

## LEASE AGREEMENT

1.0 In this Agreement, unless the context otherwise requires, the following expressions have the following meanings: "Applicable Laws" means all applicable Indian statutes, enactments, acts of the state legislature or parliament, laws, ordinances, rules, byelaws, regulations, notifications, guidelines, policies, directions, directives and orders of any governmental authority, statutory authority, tribunal, board, court, as may be applicable. Without prejudice to the generality of the foregoing, Applicable Laws shall include laws, regulations, rules and/or ordinances of lawfully constituted authorities relating to the possession, use, storage and transport of the Vehicle, including the MOTOR VEHICAL ACT (MVA)

"MOTORVEHICLESACT" or "MVA" means. Motor Vehicles Act, 1988, rules and regulations prescribed there, under, as now enacted or as the same may from time to time be amended, replaced or reenacted;

"PLATFORM" means website and any Social Media Platform by the name and style of car rental. Host Services available and which is owned and operated by "M/S FITBROS" having GST NO.29ABDPZ3427C1Z4 which includes its marketplace feature/section that provides vehicle owners with persons interested in leasing vehicles for personal use.

"Vehicle" means the vehicle together with all its components, accessories and devices as described in the booking details in the agreement.

"Permitted Territory" shall mean entire territory of India, excluding the Union Territory of Ladakh and/or any travel to connected countries including but not limited to Nepal ,Bhutan, Bangladesh or Pakistan etc.

In this Agreement, unless the context otherwise requires:

1. Headings used are for convenience and ease of reference only, are not part of this Agreement and shall not be relevant to or affect the meaning or interpretation of this Agreement.
2. Words denoted in any gender shall include all genders and terms denoting people or persons shall include both natural and legal persons (such as company) and vice versa;

The terms of this Agreement shall be deemed to be binding on both Parties based on their respective conduct notwithstanding any error or defect in the execution of this Agreement; and A reference to a clause or schedule is a reference to a clause of or schedule to this Agreement and a reference to this Agreement includes any of its schedules. All schedules to this Agreement and the terms thereof shall be an integral part of this Agreement.

## 2.0. AGREEMENT TO LEASE

- 2.1. Based on the covenants, assurances and representations of the Lessee recorded herein, the Lessor hereby grants on lease and Lessee hereby takes on lease the Vehicle, subject to the terms and conditions of this Agreement.
- 2.2. The Lessee expressly understands and agrees that this Agreement is a lease only and all along the absolute and unencumbered ownership of the Vehicle for all intent and purposes, Including for regulatory requirement under the MVA, shall remain with the Lessor. Nothing stated herein shall be construed to be a transfer to the Lessee of any ownership right, title or interest in the Vehicle, or even a right to the Lessee to demand such transfer. It is hereby clarified that during the Lease Term, the Lessee shall have the beneficial possession of the Vehicle as a Lessee pursuant to this Agreement.
- 2.3. During the Lease Term, the Lessee shall hold the Vehicle as a trustee of the Lessor and shall, at its expense, protect and Defend the title of Lessor in the Vehicle against creditors of or any person(s) claiming through Lessee.
- 3.0. TERMS OF VEHICLE
- 3.1. The Lessee hereby agrees and covenants that the Vehicle shall be used in a prudent and careful manner solely for the Lessee's personal use within the Permitted Territory and to that extent shall be driven only by the Lessee, in strict compliance with the requirements of the Applicable Laws ("Permitted Use").
- 3.2. The Lessee further agrees and acknowledges that other than the Permitted Use, all other uses of the Vehicle including the usages listed below (by the Lessee and/or any other person(s) directly or indirectly acting through, authorised by or on behalf of the Lessee), are strictly prohibited (the " Prohibited Use/s") and constitute a material breach of this Agreement:
  - 3.2 (a) Commercial use for any purpose whatsoever including usage for transportation services (goods and/or passengers) involving hire and/or reward.
  - 3.2 (b) For providing driving lessons.
  - 3.2 (c) For sports, adventure and/or participation in races, rallies, other competitive events, endurance test and similar events.
  - 3.2 (d) For towing, pushing, or propelling any trailer or any other vehicle.
  - 3.2 (e) For commission of any crime, illegal and/or unlawful activity/ies.
  - 3.2 (f) For storage of any combustible, noxious or hazardous goods or any other good(s) which owing to its weight and/or structure adversely affect and/or damage the Vehicles, Its interior, engine and/or any of its parts thereto and/or any other vehicle(s), person(s)/object(s) in such vehicle and/or pedestrian(s) passing the Vehicle.

- 3.2 (g) Taking the Vehicle outside the Permitted Territory.
- 3.2 (h) Any use(s) or activity(ies) that puts the Vehicle at a greater risk of damage.
- 3.2 (i) Any use that contravenes the terms and conditions of this Agreement, terms of the insurance relating to the Vehicle and/or the requirements of all Applicable Laws to the Lease Terms.
- 3.3 The lease of the Vehicle to the Lessee shall be for a term commencing from the Delivery Date and shall end as per booking end date as indicated in the above agreement. And includes extensions expressly provided herein (the Lease Term”).

The Lease Term may be extended for such period and on such terms and conditions as may be mutually agreed upon by the Parties.

#### 4.0 DELIVERY OF THE VEHICLE

The Lease Term may be extended for such period and on such terms and conditions as may be mutually agreed upon by the Parties.

- 4.1. On execution of this Agreement and subject to payment of Lease Rental by the Lessee on the Platform, the Lessor shall notify the Lessee that the Vehicle is ready for delivery. The Lessee shall take delivery of the Vehicle from the location notified in writing by the Lessor (the” Designated Location”) together with the Vehicle Key(s), original documentation of the Vehicle, including the registration certificate, Vehicle Insurance policy, Pollution Under Control (PUC) Certificate and other mandatory documents, if any, prescribed by the relevant authorities under Applicable Laws (“Vehicle Documentation”) on the date and time mutually agreed by the Parties, as per the date requested in the booking details (the” Booking Start Date”).
- 4.2. In the event the Lessee requests for delivery of the Vehicle to the Lessee ’address/location, the Lessor may choose to deliver or arrange for the Vehicle to be delivered to the location notified by the Lessee with assistance from GPS Location shared in any social media Platform. Along with the Vehicle Documentation on the Delivery Date].
- 4.3. For the security, safety, tracking and health monitoring of the Vehicle, certain devices may be installed by the Lessor in the Vehicle prior to its delivery to the Lessee (“InVehicle Devices”). The Lessee agrees and acknowledges that the InVehicle Devices may require minor modification from time to time and the Lessee shall provide full access of the Vehicle to the Lessor, or any other person appointed by the Lessor for the purpose of modification of such devices with reasonable prior written notice.
- 4.4. If the Lessee desires to get the Vehicle delivered at the location notified by him/her, any risk, damages to the Vehicle in transit to such location shall be treated as an accident case and the repair will be covered as per the provision as mentioned below (Insurance clause).

- 4.5. The Lessee shall remain present in person to take/receive the delivery of the Vehicle, produce his/her original driving license for inspection, furnish copies of such driving license, his/her recent passport size photograph and an additional address proof document (voter ID, Aadhar card, or valid passport) and sign the necessary documents (viz., delivery receipt) at the time of delivery, which will serve as an evidence of delivery and acceptance of the Vehicle.
- 4.6. Further, the Lessee shall inspect the Vehicle (exterior walkaround and an interior lookover of the Vehicle) prior to taking delivery and shall be deemed to have satisfied himself/herself as to its condition, fitness for Lessee's personal use and compliance with specified safety standards. Any fault/defect detected in the Vehicle thereafter shall be dealt with in accordance with the provisions as mentioned below (Addition, Maintenance and Repair).
- 4.7. If the Lessee fails to take the delivery of the Vehicle on the Booking Start Date for any reason whatsoever, the subsequent attempts to deliver the Vehicle to the Lessee will be charged as per the Fee Policy. The Lessee hereby agree and acknowledge that in case regardless of such failure to take the delivery of the Vehicle by the Lessee and consequent delay in takeover of the Vehicle by the Lessee, the Lease Term shall commence from the Booking Start Date Call retrieved

#### 5.0 LEASE RENTAL

- 5.1. In lieu of the lease of the Vehicle and related services hereunder, the Lessee shall pay to the Lessor a lease rental fee specified in the agreement (the "Lease Rental") at the time of booking the vehicle in advance for the Lease Term through any means of communication.
- 5.2. The Lessee hereby agrees and acknowledges that the Lease Rental comprises of the charges towards :
- 5.2(a) usage of the Vehicle for a preagreed mileage as specified in Booking details on the Social media platform or the booking register ("Agreed Mileage"); 5.2(b) Maintenance and repair cost;
- 5.2(b) insurance/ trip protection charges; and
- 5.2(c) Delivery charges, if applicable. In the event the usage of Vehicle exceeds the Agreed Mileage, the excess mileage will be charged as per the rate specified in the Fee Policy.
- 5.2(d) The difference between the actual usage i.e., lesser, or greater than the Agreed Mileage shall be determined and settled i.e., paid by the Lessee to the Lessor or vice versa at the time of expiry or termination of the Lease Term.
- 5.2(e) The lessee shall not sublet the vehicle which is leased for the purpose/s for any third party
- 5.3. Lessee shall be liable to pay any outstanding Lease Rental or other charges accruing due to Lessee exceeding Agreed Mileage or otherwise and shall be chargeable in accordance

with the agreement and may also incur penalties or late payment charges for prolonged default in clearing such outstanding amount as mentioned in the agreement.

- 5.4. Any other payments made by the Lessor on behalf of the Lessee pertaining to the Vehicle, under this Agreement or otherwise shall be promptly reimbursed by the Lessee to Lessor on receipt of written notice in respect thereof from the Lessor together with documentary proof of such payments or at the option of the Lessor, to set off against amounts, if any, from the Lessor to the Lessee.

#### 6.0. THEFT AND ACCIDENT

- 6.1 Lessee will be solely responsible for safety measures/precautions against any damage, accident, or criminal activity on/of the Vehicle and subject to provisions of Clause of Insurance as mentioned in the Agreement, the Lessee assumes sole financial liability in respect of:

6.1(a) In case the Vehicle is damaged, destroyed or stolen, however caused, or occasioned; and

6.1(b) For all other risks and liabilities, including personal injury or death and property damage, arising with respect to the Vehicle, howsoever arising.

6.1(c) The Lessee hereby agrees and acknowledges that under no circumstances shall the Lessor be held liable to the Lessee and/or any third party/ies for any

6.1(c)(a) Any loss or damage that may be suffered by the Lessee or any third party/ies arising from the above events or risks, howsoever caused, or occasioned; and

6.1(c)(b) Indirect, incidental, special, or consequential damages arising from or related the use of Vehicle by the Lessee or his/her copassenger or family members

#### 7.0 TRAFFIC VIOLATION AND CONFISCATION

7.1. During the Lease Term and until the return of the Vehicle in good working order/condition to the Lessor, the Lessee is solely responsible for use of the Vehicle in compliance with traffic rules and regulation, including payment of toll charges.

7.2. Accordingly, the Lessee shall be solely liable for all traffic violations involving the Vehicle during the aforesaid period (the "Traffic Violation") and cost, penalty, fines and/or charges imposed in respect thereof, including fines for late payment, toll evasion/ interstate taxes or any processing fees added by the relevant regulatory authority(ies).

7.3. The Traffic Violation includes, but is not limited to, unauthorised parking, excess speeding, breaking red light, photo enforcement, and toll violations.

7.4. The Lessee shall notify/report all Traffic Violations to the Lessor in writing together with all details, as soon as possible, not being later than 24 hours prior to expiry of period

prescribed for taking necessary action in respect thereof under Applicable Laws (for example, if the case is being taken to court).

- 7.5. In the event the Lessee fails to do so, the Lessor shall have the right at its sole discretion to pay such amounts and the Lessee shall reimburse the Lessor for same at the earliest.
- 7.6. The Lessee shall also be responsible If the Vehicle is confiscated, seized or impounded during the Lease Term and until the return of the Vehicle in good working condition to the Lessor, for any reason attributable to the Lessee ("Confiscation "). In such cases the Lessee shall notify/report the Confiscation to the Lessor in writing together with all details, as soon as possible, not being later than 24 hours prior to the expiry of the period prescribed for taking necessary action in respect thereof under Applicable Laws
- 7.7. The Lessee shall provide full support, assistance and cooperation to the Lessor then take all necessary steps/actions, to have the Vehicle released from the relevant authorities.
- 7.8. In case Lessor assists in the release of the Vehicle from Confiscation, including payment of fines, charges, penalty, and fees imposed by relevant authority and all the costs and expenses incidental thereto.
- 7.9. In the event the Lessee fails to provide its support and/or pay for the cost involved in having the Vehicle released from Confiscation, the Lessor shall have the right (at its sole discretion) to take necessary steps to secure the release of the Vehicle at its own expense. In such cases the Lessee shall promptly reimburse the Lessor for all cost/expense incurred for release of the Vehicle.
- 7.10. Notwithstanding anything to the contrary stated herein, in case of Confiscation;
  - 7.10(a) If the Lease Term is about to expire prior to release of the Vehicle, the Lease Term will stand extended in accordance with the terms of this Agreement; and
  - 7.10(b) The Lessee shall not be entitled to terminate the Agreement, until the Vehicle has been duly released, fines/charges/conditions, if any, imposed for release of Vehicle by the relevant authorities has been paid or satisfied/fulfilled and necessary documentary evidence reflecting conclusive disposal of the matter is received by the Lessor.

## 8.0 INSURANCE

- 8.1. Lessor shall at his/her own expense during the Lease Term and until the Vehicle is delivered back in good working condition, comprehensively insure the Vehicle with an insurance company of its choice (" Vehicle Insurance ").
- 8.2. The Vehicle Insurance will provide primary thirdparty liability protection, which will be to the extent of claims /liabilities covered by the Vehicle insurer on the Vehicles for any/all claims and/or liabilities arising during the use or operation of the Vehicle by the Lessee.

- 8.3. In case of First Party Insurance the liability shall be settled by the due process of law.
- 8.4. This shall not however cover the Own Damage and the Lessee will be responsible for any associated costs and charges directly/indirectly personally attributable to the Lessee's default with the terms of this Agreement.
- 8.5. However , it is hereby clarified that if this thirdparty liability protection is extended by the Lessor, it will not be applicable if the liability arises due to Lessee 'negligence, or breach of applicable terms under this Agreement.
- 8.6. The liability protection under the Vehicle Insurance applies only to claims of thirdparty bodily injury, death, or property damage, other than to the Vehicle, arising from the use of Vehicle as permitted by this Agreement and Applicable Laws.
- 8.7. Any such protection excludes any claim made by the Lessee or copassenger or Lessee 'or copassengers 'immediate family members who permanently live with the Lessee or was travelling with the Lessee at the time of incident this obligation may be limited to the extent the Vehicle Insurance's coverage applies.
- 8.8. The Lessor shall in no event be liable to the Lessee and/or the copassenger/s for any indirect, special, punitive, or consequential damages (including lost profits) arising from or related to the Vehicle, its use, or this Agreement.
- 8.9. In case of damage, theft, or destruction or any damage total or partial of the Vehicle during the Lease Term and until the return of the Vehicle to the Lessor in good working condition, subject to the Lessee fulfilling its obligations in respect thereof under the Clause above, the Lessee shall be liable for any costs that maybe incurred for rectification/repair of the Vehicle due to such damages.
- 8.10. In case of a total loss or theft, the Lessee shall promptly notify the lessor and the Lessor of the same and shall assist the Lessor in filing of complaint (in case of theft) or invoking such insurance claims by providing all required documentation and details of the accident or damages to ensure that the Lessor may effectively administer the claims from the insurance company.
- 8.11. Lessor's decision in filing the claim, that regard shall be final and binding on both Parties. In cases where the Lessor decides not to file the claim, repair expenses shall be borne by the Lessee. Except in cases of theft, total loss, and/or situations where the Lessor is unable to claim insurance due to actions (or lack thereof) attributable to the Lessee. Lessors Decission shall be final in any aforesaid case.
- 8.12. The expenses associated with:
- 8.12 (a) any risks and ensuing damage to the Vehicle, which are not fully covered by the Vehicle Insurance;

- 8.12 (b) risks which are not borne by the Lessor in terms hereof shall be borne by the Lessee. Accordingly, the Lessee shall pay to the Lessor the amount of loss and/or damage not paid under the Vehicle Insurance and be liable for the following:
- 8.12(b)(1) Damage to the Vehicle: The difference, if any, between the actual amount incurred in repairing the damage to the Vehicle and the amounts recovered/to be recovered under the Vehicle Insurance.
- 8.12(b)(2) Theft/total loss of the Vehicle:
- (a) The shortfall between the claim amount received under the Vehicle Insurance, and the book value of the Vehicle at that time of its theft/total loss;
  - (b) if usage of Vehicle at the time of its theft/total loss exceeds the Agreed Mileage, charge of the excess mileage incurred as per the rate specified in the Fee Policy;
  - (c) other cost/expense incurred by the Lessor for or in respect of assessment loss suffered by the Vehicle and possibility of its restoration; and
  - (d) other charges, if any, remaining unpaid by Lessee under this Agreement.
- 8.13. Notwithstanding the above in case the insurance claim for damages/loss to the Vehicle under the Vehicle Insurance is repudiated or not admitted by the insurance company due to the mishandling/ negligence/ fault/ rash driving/ any other illegal and unlawful use of the Vehicle by the Lessee; or any thirdparty claims rejected due to negligence/ misconduct/rash driving/ other unlawful or illegal act on part of the Lessee causing irreparable damage, the Lessee shall be solely liable to incur all the related damages, losses, costs and expenses.

## 9. ADDITION, MAINTENANCE AND REPAIR

- 9.1. The Lessor shall through its authorised agent/service provider (“ Authorised Service Provider”) perform the necessary and required routine maintenance on the Vehicles and upon request from the Lessor, the Lessee shall provide to the Authorised Service Provider all details on the Vehicle’s usage, including the reading of the distance indicator ( Odometer “), tyre quality and battery condition of the Vehicle. Any defect/discrepancy in the Odometer shall be duly reported by the Lessee to the Lessor to ensure the mileage Is being duly recorded.
- 9.2. All repair and/maintenance of the Vehicle, including shall be undertaken by the Lessee subject to the provisions of Insurance under the agreement in accordance with the terms of this Agreement or with prior written consent/confirmation of the Lessor.
- 9.3. Subject to requirements of the above mentioned Clause, all incidents requiring repair of the Vehicle must be reported to the Lessor and in accordance with the Lessor’s instruction



taken to the workshop for repair. The Lessee shall be responsible to pay for towing, repairs, and other expenses if the incident results from a breach of this Agreement and/or use of the Vehicle by the Lessee in violation of terms of this Agreement and/or its user manual.

- 9.4. All parts and accessories that are replaced or added to the Vehicle during the Lease Term and until the Vehicle is returned to the Lessor, shall be the sole and exclusive property of the Lessor and the Lessee shall not have any rights in respect thereof, including right to be compensated therefor.
- 9.5. Take all necessary actions to duly secure the Vehicle from external factors while parking it or leaving it parked, including human or general known adverse weather conditions, by closing its windows and locking the Vehicle either by way of the central locking system or manual locking, as the case may be;
- 9.6. Comply with the terms of this Agreement and Related/Applicable Laws. This includes, rules or regulations relating to use of seat belt, permitted speed/weight limit, child restraint and instructions relating to the same being displayed/communicated by the authorities through marks or sign boards;
- 9.7. Not perform, or allow any person to perform, any work in or upon or make modifications, changes, alterations or repairs to the Vehicle, except as expressly provided under this Agreement;
- 9.8. Not tamper and/or remove the InVehicle Devices and in case the Lessee removes or otherwise tamper the devices, pay to the Lessor the actual cost of the InVehicle Devices.
- 9.9. Allow the Lessor or his/her representatives to inspect the Vehicle at all reasonable times with prior notice of at least 4 hours to inspect the Vehicle and the InVehicle Devices and shall grant reasonable access to the premise where the Vehicle is kept for such inspections;
- 9.10. Keep the Vehicle free from any liens, claims, charges and encumbrances, of any nature whatsoever;
- 9.11. Keep the Lessor fully informed of all material matters relating to the Vehicle and/or Lessor's right/title/interest in the Vehicle;
- 9.12. Deliver the Vehicle at the end of the Lease Term or on earlier termination of the Agreement at such address as the Lessor requires, or if necessary, allow Lessor or its representatives access to the site or any premises where the Vehicle is located for the purpose of removing the Vehicle;
- 9.13. Not do or permit to be done anything which could invalidate the Vehicle Insurance.
- 9.14. Ensure the safekeeping and presence of the Vehicle Documentation in the Vehicle. If these documents are lost or stolen, the Lessee will bear the cost of obtaining duplicates and/or

the inconvenience fee as per the Fee Policy and the same shall be remitted to the Lessor along with all other charges for damages and Lease Rental as payable to the Lessor.

#### 10.0. REPRESENTATIONS AND WARRANTIES

The Lessor hereby represents and warrants to the Lessee that:

- 10.1 (a) Lessor is the sole legal, and registered owner of the Vehicle
- 10.1(b) Lessor has the full legal right, capacity, power and authority to enter into and execute this Agreement, be contractually bound by and comply with all rights and obligations contracted under this Agreement.
- 10. 1(c) There is no action, investigation or other proceedings of any nature whatsoever, by any governmental authority or third party against the Lessor, which would restrain, prohibit or otherwise challenge the lease of the Vehicle to the Lessee as contemplated by this Agreement. Further the Lessor also represents that there are no pending insurance claims and/or other ongoing litigations, legal claims or any other claims that may arise in tort or law at the time of listing the Vehicle.

10.2. The Lessee represents and warranties to the Lessor that:

- 10.2(a) Lessee is above the legal driving age requirement and has a valid driving license for the use and operation of the Vehicle in accordance with requirements of Applicable Laws;
- 10. 2(b) Lessee the full legal right, capacity, power, and authority to enter into and execute this Agreement, be contractually bound by and comply with all rights and obligations contracted under this Agreement; and
- 10.3 There is no action, investigation, or other proceedings of any nature whatsoever, by any governmental authority or third party against the Lessee, which would restrain, prohibit, or otherwise challenge the transaction as contemplated by this Agreement.
- 10.4. Except as expressly provided in this Agreement, the Lessor makes no warranty or representation, express or implied, as to the fitness, safeness, design, merchantability, condition, quality, capacity or workmanship of the Vehicle.

#### 11. TERMINATION

- 11.1 The Lessor may terminate this Agreement at any time, by cancelling the booking over the Due Information to the Lessor.

The cancellation by Lessee is subject to certain charges that the Lessee may incur and are more particularly described in the Fee Policy. Provided that the Lessor shall be entitled to terminate this Agreement immediately with written notice to the Lessee at any time during the Lease Term, including the Lessor Lockin Period in the following cases:

- 11.1(a) The Lessee refuses and/or Is unable/unwilling for any reason to accept delivery of the Vehicle in accordance to stated reasons to the lessor.
- 11.1(b) Prohibited Use of the Vehicle by the Lessee or any other third party during the Lease Term.
- 11.1(c) Lessee ceasing to hold valid driving license, for any reason whatsoever and/or Lessee 'driving license being revoked, detained, impounded and/or suspended by concerned authorities.
- 11.1(d) Failure by Lessee to abide by the terms of this Agreement and/or observe the covenants or fulfil his/her material obligations hereunder.
- 11.1(e) The Lessee is placed in mandatory liquidation or has a receiver or other administrator appointed in respect of his/her assets.
- 11.1(f) In case of an accident or damage of the Vehicle, resulting in partial or repairable damages in the Vehicle or in case of theft where the Vehicle is recovered before or after the claim amount under the insurance is received from the insurance company.
- 11.1(g) The Lessee is entering into or proposing to enter into any arrangement for the benefit of its creditors; and
- 11.1(h) Lessee becomes subject to any event analogous to, or enters into any arrangement analogous to, any of those events or arrangements as specified in the agreement.
- 11.1(i) In case of termination of this Agreement on account of expiry of the Lease Term as mentioned in the agreement.

## 12.0 PAYMENT TERMS

- 12.1 The Lessee shall pay to the Lessor, the outstanding Lease Rental (together with all late payment/charges thereon) and other unpaid sums/charges/costs payable by the Lessee under this Agreement, including without limitation the payables as mentioned in the agreement.

Upon the return of the Vehicle to the Lessor in accordance as mentioned in the agreement, the Lessor shall:

- 12.1(a) instruct the Platform to return to the Lessee the advance Lease Rental, if any, paid by the Lessee for the unexpired period of the Lease Term to the Lessee subject to adjustment against other outstanding payable of the Lessee under this Agreement; and
- 12.1 (b) except in case of termination under the Abovementioned Clauses

- 12.2. Return to the Lessee the entire advance Lease Rental or then remaining balance of the Lease Rental, as the case may be, with reasonable interest, provided the Lessee has no other amounts payable by him/her hereunder and fully performed all other provisions of this Agreement;

#### 13.0 DISCHARGE OF OBLIGATION

The Parties shall be regarded as discharged from any further obligations under this Agreement. Provided that termination and/or expiry of this Agreement shall not relieve either Party of any obligation or liability accrued prior to the date of return of the Vehicle to the Lessor in accordance with Clause mentioned in the agreement.

#### 14.0 REPOSSESSION/RETURN OF THE VEHICLE

Upon the expiry of the Lease Term, or earlier termination of this Agreement (except termination of the Agreement on account of theft or total destruction/loss of the Vehicle), the Lessee shall, at its own cost and expense, and without any delay, return the Vehicle with the Vehicle Documentation, Vehicle's key, key fob, in-Vehicle Devices and other starting device to the Vehicle in its designated position in the Vehicle at the Designated Location. The Lessee agrees and covenants that at the time of its return the Vehicle shall be in the almost the same order and condition, as the Vehicle was at the time of commencement of the Lease Term, even not except normal wear and tear, as per the guidelines set out under the SCHEDULE I.

Or

In case, The Lessee returns the Vehicle at a place other than the Designated Location the Lessee shall be liable to reimburse the Lessor all costs incurred in transporting the Vehicle from such place to the Designated Location;

The Lessee does not return the Vehicle within the specified period, the Lessor directly shall be entitled to take necessary steps to repossess the Vehicle after giving reasonable notice to the Lessee and the Lessee hereby irrevocably authorizes Lessor and its Authorised Service Provider to take physical possession of the Vehicle as aforesaid. In such cases the Lessee shall be liable to pay late return penalty specified in the Fee Policy till the date the Vehicle is returned to or repossessed by the Lessor as also the costs, expenses, charges etc. Incurred by the Lessor for repossession of the Vehicle;

#### 15.0 DAMAGE/S

Damage to the Vehicle at the time of the return, other than no excepted wear and tear as per the Vehicle Condition told by the Lessor. In such cases the Lessee shall be liable to pay penalty for such damages at the rate specified in Fee Policy and all the costs, expenses, charges etc. Incurred by the Lessor to restore the Vehicle to its original condition

## 16.0 RETURN CONDITIONS

The Vehicle is returned, but its key, key fob, inVehicle Devices, other starting device to the Vehicle or any component(s) of the Vehicle, including the accessories fitted as original equipment on the Vehicle (except where the components are replaced or repaired during the Lease Term in accordance with this Agreement) and/or any of Vehicle Documentation is missing, the Lessee shall be charged with inconvenience fee and or penalty/ cost of replacement for such parts and documentation as maybe provided in the Fee Policy. The Lessee shall also remain responsible for the payment of charges against the usage of the Vehicle during such period.

The actual usage of Vehicle by the Lessee exceeds the Agreed mileage, the excess mileage charge as per the rate specified in the Fee Policy shall be paid by the Lessee to the Lessor.

If required by any relevant regional transport authorities/statutory transport offices, the Lessee agrees to sign on such required documents on return of the Vehicle at the end of Lease Term. In turn, the Lessor confirms that the Lessee will not be responsible for any claims or damages incurred after the Vehicle is returned the Lessor.

## 17.0 CONFIDENTIALITY

The Parties agrees that there will be sharing, and exchange of confidential personal and sensitive personal information between them. To safeguard such information each party (“Receiving Party”) agrees to protect the confidential information of the other party (“Disclosing Party”) received by it hereunder as the Receiving Party would protect its own, or any diligent person or entity would protect information of this nature.

The Receiving Party agrees to use the confidential information only for the purpose of and in performance of its rights and obligations under this Agreement.

The obligation not to disclose confidential information shall survive notwithstanding the termination of this Agreement andat no time will the either Party be permitted to disclose confidential information of the other party, except to the extent at or after the time of disclosure or acquisition, the confidential information is in the public domain in the form supplied otherwise than through a breach of this Agreement by the Receiving Party.

## 18.0 MISCELLANEOUS

- 18.1 All payments under this Agreement, including without limitation the Lease Rental and the same shall be made through the any UPI or any mode of payment in accordance with the payment specified in the Agreement.
- 18.2. Notices, demands or other communication required or permitted to be given or made under this Agreement, shall be in writing and delivered personally or sent by courier or by email

to the intended recipient at their address set forth in this Agreement, or to such other address or email address, as either Party may from time to time duly notify to the other.

- 18.3. This Agreement shall be governed and construed in accordance with the laws of the India and the courts of Bangalore shall have sole and exclusive jurisdiction in case of any disputes or claims and questions arising under or pursuant to this Agreement.
- 18.4. Any amendment of or modification to this Agreement shall be effective only if mutually agreed in writing and executed by a duly authorized representative of each Party.
- 18.5. Any tolerance by any Party with respect to the anticipation or delay in the performance of the obligations assumed by the Parties will not constitute novation, amendment or a waiver of any term set forth in this Agreement.

#### 19.00. ELECTRONIC STAMP PAPER EXECUTION

- 19.1. The Parties acknowledge and agree that this Agreement may initially be executed electronically, through digital acceptance, electronic signature, clickwrap acceptance, OTP verification or any other legally recognised electronic mode. The Customer further agrees that, whenever required by the Lessor for evidentiary purposes, judicial proceedings, arbitration, financing, securitisation, registration, compliance with applicable law or any other legitimate commercial purpose, this Agreement may thereafter be printed, engrossed and executed upon appropriate nonjudicial eStamp Paper or stamp paper of such denomination as may be required under the applicable stamp laws.
- 19.2. The Customer irrevocably undertakes, upon receiving written or electronic intimation from the Lessor, to appear personally or through an authorised representative and execute such stamped Agreement, supplementary agreement, confirmation deed, affidavit, declaration, undertaking or other ancillary document within three (3) Business Days or such other period specified by the Lessor.
- 19.3. The Customer further agrees that all stamp duty, surcharge, penalty, deficit stamp duty, registration charges, execution charges or incidental expenses arising out of such execution, unless expressly agreed otherwise, shall be borne and paid by the Customer on demand.
- 19.4. Failure or refusal by the Customer to execute such documentation shall constitute a material breach of this Agreement, entitling the Lessor to suspend services, terminate the Agreement, repossess the Vehicle in accordance with this Agreement and applicable law, recover all outstanding dues, and seek appropriate legal or equitable remedies.
- 19.5. Execution of such stamped documentation shall not be construed as creating a new agreement or novating the rights and obligations of the Parties, all of which shall be deemed to have existed continuously from the date of the original execution of this Agreement.

#### 20. CLICKWRAP AGREEMENT

- 20.1. The Customer expressly acknowledges that acceptance of this Agreement or any amendment, policy, schedule, tariff, declaration, consent, waiver or undertaking by clicking the "I Agree", "Accept", "Proceed", "Confirm", "Continue", "Submit", "Book Now" button or any equivalent electronic affirmation on the Lessor's website, mobile application or digital platform shall constitute the Customer's unconditional, informed and legally binding consent to the terms thereof.
- 20.2. The Customer further represents that prior to providing such electronic acceptance, the Customer has been afforded adequate opportunity to read, understand and seek independent legal advice regarding the contents of the Agreement and has voluntarily elected to accept the same.
- 20.3. The Customer irrevocably waives any contention that such acceptance was not consciously given merely because the Agreement was accepted electronically, through a clickwrap mechanism or without physical execution.
- 20.4. Electronic acceptance generated by the Lessor's servers, including timestamps, IP addresses, browser identifiers, mobile device identifiers, account credentials, audit logs, session records, authentication records and related electronic metadata, shall constitute prima facie evidence of such acceptance.
- 20.5. The Customer further agrees that every subsequent booking, renewal, extension, payment, modification, cancellation or transaction undertaken through the Digital Platform after such acceptance shall constitute reaffirmation of the contractual relationship established under this Agreement.

## 21. BROWSEWRAP TERMS

- 21.1. The Customer acknowledges that access to or continued use of the Lessor's website, customer portal, mobile application or any other Digital Platform shall constitute acceptance of all policies, notices, operational guidelines, frequently asked questions, privacy policies, acceptable use policies, security policies and other terms displayed thereon to the extent they are consistent with this Agreement.
- 21.2. Where any operational policy published on the Digital Platform supplements this Agreement without materially altering the commercial obligations of the Parties, such policy shall automatically form an integral part of this Agreement from the date of publication.
- 21.3. In the event of inconsistency between this Agreement and any subsequently published operational guideline, the provisions of this Agreement shall prevail unless the amendment has been expressly accepted by the Customer in a legally recognised manner.
- 21.4. The Customer shall periodically review the Digital Platform for operational updates relating to vehicle collection, return procedures, payment mechanisms, customer support,

insurance processes, safety requirements and other administrative matters, and failure to do so shall not relieve the Customer of obligations arising therefrom.

## 22. DASH CAM, CCTV AND AUDIOVISUAL EVIDENCE

- 22.1. The Customer acknowledges that the Vehicle may, either presently or in future, be equipped with dashboard cameras, cabin cameras, external cameras, CCTV equipment or other audiovisual recording devices installed for the purposes of safety, accident reconstruction, theft prevention, insurance compliance, regulatory compliance, investigation of criminal acts and protection of the legitimate interests of the Lessor.
- 22.2. The Customer expressly consents to such recording during the period of possession of the Vehicle, subject to applicable law.
- 22.3. All video recordings, photographs, audio recordings and related electronic data generated by such devices shall remain the exclusive property of the Lessor.
- 22.4. The Lessor shall be entitled to preserve, reproduce, analyse and produce such recordings before insurers, law enforcement authorities, courts, arbitral tribunals or any competent authority where reasonably necessary for protection of its legal or commercial interests.
- 22.5. The Customer shall neither tamper with, disable, obstruct nor interfere with any such equipment and shall immediately notify the Lessor of any malfunction or accidental damage.
- 22.6. Any deliberate interference with recording equipment shall constitute a material breach of this Agreement.

## 23. GPS, TELEMATICS AND LOCATION EVIDENCE

- 23.1. The Customer expressly acknowledges that the Vehicle may be fitted with Global Positioning System (GPS) devices, telematics units, immobilisation systems, speed monitoring systems, engine diagnostic devices, remote communication modules and other fleet management technologies.
- 23.2. The Customer irrevocably consents to the continuous collection, transmission, storage and processing of geolocation information, route history, vehicle diagnostics, ignition records, fuel information, speed data, mileage records, driving behaviour data, maintenance information and other operational data generated during the term of this Agreement.
- 23.3. Such information may be utilised for vehicle recovery, theft prevention, emergency assistance, accident investigation, maintenance scheduling, fleet management, billing verification, insurance claims, enforcement of contractual obligations and compliance with applicable law.
- 23.4. Subject to proof of authenticity and applicable evidentiary rules, GPS logs, telematics records, route histories and other electronically generated vehicle data maintained by the



Lessor in the ordinary course of business may be relied upon as evidence in any judicial, arbitral or administrative proceeding concerning the rights and obligations of the Parties.

- 23.5. The Customer shall not remove, disconnect, shield, alter, manipulate or otherwise interfere with any GPS or telematics equipment installed in the Vehicle. Any intentional tampering shall constitute a material breach of this Agreement, without prejudice to the Lessor's right to recover any resulting loss or damage and to exercise other contractual remedies available under this Agreement.

## 24. BLOCKCHAIN RECORDS AND DISTRIBUTED LEDGER EVIDENCE

- 24.1. The Customer acknowledges that the Lessor may, either directly or through authorised thirdparty technology providers, utilise blockchain technology, distributed ledger technology ("DLT"), cryptographic hashing systems or any equivalent immutable digital recordkeeping mechanism for recording, authenticating, preserving or verifying transactions, documents, electronic signatures, timestamps, payment records, vehicle history, maintenance logs, insurance records, customer declarations, digital acknowledgements, contractual amendments, GPS records or any other information relating to this Agreement.
- 24.2. The Customer expressly agrees that any digital record stored, timestamped, hashed or otherwise authenticated through such blockchain or distributed ledger technology shall, subject to proof of authenticity and admissibility under applicable law, constitute reliable evidence of the transaction or event recorded therein.
- 24.5. The Customer further acknowledges that the use of blockchain technology is intended to ensure integrity, traceability, immutability and transparency of records and shall not be construed as creating any independent contractual relationship between the Customer and any blockchain service provider.
- 24.6. The Lessor shall remain entitled to migrate, replace, discontinue or upgrade any blockchain infrastructure without affecting the validity or enforceability of this Agreement or the records previously created.
- 24.7. No Customer shall have any proprietary interest whatsoever in any blockchain architecture, smart contract framework, distributed ledger infrastructure or cryptographic database utilised by the Lessor.

## 25. CLOUD STORAGE, BACKUP SYSTEMS AND DIGITAL PRESERVATION OF RECORDS

- 25.1. The Customer expressly acknowledges that all documents, communications, payment records, customer information, identity documents, booking confirmations, invoices, insurance records, GPS information, telematics data, audit logs, photographs, CCTV recordings, dashcam footage, contractual documents and any other electronic information

relating to this Agreement may be stored, processed, replicated, archived and backed up by the Lessor upon cloudbased infrastructure maintained either by the Lessor or authorised thirdparty service providers situated within or outside India, subject to applicable law. The Customer irrevocably consents to such storage and processing.

- 25.2. The Lessor shall be entitled to create multiple encrypted backup copies for disaster recovery, business continuity, regulatory compliance, litigation management, fraud prevention and operational security.
- 25.3. The Customer shall have no right to object to the use of cloud infrastructure solely on the ground that such records are electronically maintained.
- 25.4. The Lessor shall adopt commercially reasonable safeguards to maintain confidentiality and integrity of such electronic records; however, the Lessor shall not be liable for interruptions, outages, cyberattacks or failures attributable to independent cloud service providers despite reasonable care.
- 25.5. Cloudgenerated records maintained in the ordinary course of business shall, subject to applicable law, be admissible as evidence in judicial, arbitral or administrative proceedings.

## 26 DIGITAL AUDIT TRAIL

- 26.1. The Customer acknowledges that every interaction undertaken through the Lessor's Digital Platform shall automatically generate a comprehensive digital audit trail.

- 26.1.1. Such audit trail may include, without limitation:

- (a) login history;
- (b) logout history;
- (c) IP addresses;
- (d) MAC addresses;
- (e) device identifiers;
- (f) browser fingerprints;
- (g) cookies;
- (h) timestamps;
- (i) GPS coordinates;
- (j) application usage logs;
- (k) booking history;
- (l) payment history;
- (m) digital acknowledgements;
- (n) OTP verification records;
- (o) user activity logs;
- (p) modification history;
- (q) cancellation records;
- (r) communication logs;
- (s) electronic signatures;
- (t) metadata; and

(u) any other electronically generated system records.

The Customer expressly agrees that such audit trails are automatically generated in the ordinary course of business without manual intervention and are intended to ensure transparency, fraud prevention, cybersecurity, contractual enforcement and regulatory compliance.

The Customer waives any objection merely on the ground that such records were automatically generated through computer systems.

The Lessor shall be entitled to rely upon such audit trails as evidence of customer conduct, contractual performance, defaults, communications or other transactions, subject to applicable evidentiary requirements.

27. SERVER LOGS AS EVIDENCE

27.1. The Parties acknowledge that the computer servers, databases, application servers, payment gateways, authentication systems and network infrastructure utilised by the Lessor automatically generate electronic server logs in the ordinary course of business.

27.2. Such server logs may contain information relating to:

- account access;
- IP addresses;
- login credentials;
- failed login attempts;
- browser information;
- device identifiers;
- operating systems;
- timestamps;
- booking confirmations;
- payment authorisations;
- OTP verifications;
- API requests;
- communication records;
- application usage history;
- digital acknowledgements;
- GPS requests;
- security alerts;
- fraud detection events;
- customer interactions.

27.3. Subject to applicable law and proof of authenticity, such server logs shall constitute reliable electronic business records capable of being produced before Courts, Arbitral Tribunals, Insurance Authorities, Regulatory Authorities or Investigating Agencies.

27.4. The Customer shall not dispute the authenticity of such server logs solely on the ground that they were electronically generated or maintained in digital format.

## 24. METADATA, DIGITAL FOOTPRINTS AND ELECTRONIC IDENTIFIERS

- 24.1. The Customer acknowledges that every electronic communication, digital document, photograph, scanned document, uploaded identity proof, electronic signature, GPS log, payment confirmation, email, mobile application interaction, booking request and electronic transaction may automatically generate metadata and other digital identifiers.
- 24.1.1 Such metadata may include, inter alia,
- (a) creation dates;
  - (b) modification history;
  - (c) authorship information;
  - (d) device identifiers;
  - (e) software versions;
  - (f) GPS coordinates;
  - (g) IP addresses;
  - (h) browser information;
  - (i) cryptographic hash values;
  - (j) timestamps;
  - (k) digital certificates;
  - (l) transmission history;
  - (m) file integrity records; and
  - (n) other associated technical information.
- 24.2. The Customer expressly agrees that such metadata forms an integral part of the electronic record and may be relied upon for establishing authenticity, chronology, integrity and origin of the electronic transaction, subject to applicable law. Nothing contained herein shall prevent either Party from challenging the accuracy or authenticity of any particular electronic record through legally permissible means.

## 25. OTP AUTHENTICATION, ELECTRONIC CONSENT AND DIGITAL SIGNATURE

- 25.1. The Customer irrevocably agrees that authentication through a OneTime Password (OTP), biometric verification, digital token, verified mobile number, registered email address, multifactor authentication or any other secure electronic authentication mechanism approved by the Lessor shall constitute valid electronic confirmation of the Customer's identity for the purposes of this Agreement.
- 25.2. Any Agreement, amendment, declaration, undertaking, consent, booking, payment instruction, cancellation request, extension request or other transaction authenticated through such electronic process shall, subject to applicable law, be binding upon the Customer as if physically signed by the Customer.
- 25.3. The Customer shall remain solely responsible for maintaining confidentiality of passwords, OTPs, authentication devices, registered mobile numbers, registered email addresses and login credentials.

- 25.4. The Customer shall immediately notify the Lessor of any loss, theft, unauthorised disclosure or compromise of such credentials.
- 25.5. Until receipt of such notice and reasonable opportunity to act thereon, the Lessor shall be entitled to rely upon transactions authenticated through the registered authentication credentials in good faith.
- 25.6. The Customer further agrees that electronic authentication records maintained by the Lessor, including OTP delivery logs, authentication timestamps, mobile verification records, device identifiers and associated audit logs, may be relied upon as evidence of customer authorisation, subject to compliance with applicable law.

## 26. ELECTRONIC RECORDS, ADMISSIBILITY AND EVIDENTIARY VALUE

- 26.1. The Parties expressly acknowledge that all electronic records generated, maintained, transmitted, stored or preserved by the Lessor in connection with this Agreement, including but not limited to booking confirmations, invoices, receipts, electronic signatures, digital acknowledgements, OTP verification logs, GPS records, telematics information, dashboard camera recordings, CCTV footage, photographs, emails, SMS communications, WhatsApp communications, payment gateway confirmations, audit trails, server logs, metadata, customer declarations, KYC records and all other electronically generated information, shall constitute business records maintained in the ordinary course of business.
- 26.2. The Parties further acknowledge that such electronic records may be stored in electronic databases, cloud servers, disaster recovery facilities, backup systems or other secure digital repositories and may be reproduced in electronic or printed form whenever required.
- 26.3. Wherever certification or authentication of electronic records is required under applicable law, the Lessor shall be entitled to produce such certificates through its authorised officers or custodians of records.
- 26.4. The Customer shall not dispute the admissibility of any electronic record merely because such record exists in electronic form or was generated through automated computer systems.
- 26.5. Nothing contained herein shall prejudice the right of either Party to challenge the authenticity, integrity or reliability of any specific electronic record in accordance with applicable law.

## 27. CUSTOMER CONSENT TO FUTURE AMENDMENTS

- 27.1. The Customer expressly acknowledges that the Lessor operates a technologydriven vehicle rental and mobility platform requiring periodic modification of operational procedures, security protocols, compliance requirements, insurance conditions, payment mechanisms, digital platform functionalities and customer policies.

27.2. Accordingly, the Customer agrees that the Lessor may amend, supplement, revise or update the operational provisions of this Agreement from time to time to the extent reasonably necessary for:

- (a) compliance with changes in applicable law;
- (b) implementation of technological improvements;
- (c) enhancement of cybersecurity measures;
- (d) prevention of fraud;
- (e) protection of customer data;
- (f) improvement of operational efficiency;
- (g) regulatory directions;
- (h) insurance requirements; or
- (i) business continuity.

27.3. Any such amendment shall become effective upon communication through electronic mail, SMS, WhatsApp, notification on the Digital Platform or such other reasonable mode of communication specified by the Lessor, provided that any amendment materially affecting the commercial obligations of the Customer shall require the Customer's express acceptance in a legally recognised manner.

## 28. SUCCESSORS, ASSIGNS AND BUSINESS TRANSFERS

28.1. This Agreement shall be binding upon and enure to the benefit of the Parties, their respective successors, legal representatives, administrators, executors, receivers, liquidators, permitted assigns and successors in interest.

28.2. The Lessor shall be entitled, without obtaining the prior consent of the Customer, to assign, novate, transfer, securitise, syndicate, finance, pledge, hypothecate or otherwise deal with its rights, receivables, benefits or obligations arising under this Agreement in favour of any bank, financial institution, nonbanking financial company, investment fund, assignee, purchaser of receivables, affiliate or successor entity.

28.3. The Customer shall execute all documents reasonably required for giving effect to such assignment or transfer.

28.4. The Customer shall not assign, transfer, delegate, subcontract, licence or otherwise dispose of any rights or obligations under this Agreement without the prior written consent of the Lessor.

28.5. Any purported assignment in violation of this Clause shall be void and constitute a material breach of this Agreement.

## 29. REMOTE IMMOBILISATION AND VEHICLE SECURITY

29.1. The Customer acknowledges that the Vehicle may be equipped with electronic immobilisation systems, telematics units, engine control devices, remote access technology

or other security mechanisms intended to protect the Vehicle against theft, unauthorised use or misuse.

- 29.2. Subject to applicable law and the terms of this Agreement, the Customer authorises the Lessor to activate such security measures where reasonably necessary, including in circumstances involving:
- (a) theft or suspected theft of the Vehicle;
  - (b) unauthorised retention beyond the agreed rental period;
  - (c) fraudulent acquisition or use of the Vehicle;
  - (d) lawful directions issued by competent governmental authorities;
  - (e) material breach of this Agreement creating a substantial risk to the Vehicle or third parties; Before exercising any such right in circumstances not involving urgency, public safety or suspected criminal activity, the Lessor shall ordinarily endeavour to provide reasonable notice to the Customer.
- 29.3. The Customer shall not tamper with, disable, interfere with or attempt to circumvent any security or immobilisation system installed in the Vehicle. Any intentional tampering shall constitute a material breach of this Agreement.

### 30. VEHICLE RECOVERY AUTHORISATION

- 30.1. Upon expiry or lawful termination of this Agreement, or where the Customer wrongfully retains possession of the Vehicle contrary to the terms hereof, the Customer shall immediately return the Vehicle to the location specified by the Lessor.
- 30.2. If the Customer fails to return the Vehicle after reasonable demand, the Customer authorises the Lessor to take all lawful steps necessary for recovery of the Vehicle, including engaging recovery agencies, towing contractors, locksmiths, transport operators, investigators, legal advisers or other authorised representatives.
- 30.3. The Customer agrees to extend full cooperation during the recovery process and shall not obstruct, conceal, remove or otherwise interfere with lawful recovery efforts.
- 30.4. All reasonable expenses incurred in connection with such recovery, including transportation, towing, storage, inspection, investigation and legal expenses, shall be recoverable from the Customer to the extent permitted by applicable law.
- 30.5. Nothing contained in this Clause shall authorise any act contrary to law or permit the use of unlawful force, intimidation or other prohibited methods for recovery of the Vehicle. The Lessor shall exercise its rights strictly in accordance with applicable legal requirements.

30.6. Absolutely. Here's a Supreme Court Senior Advocate style clause that is comprehensive, commercial, and aligned with Indian law. It is drafted to be lessor friendly while avoiding overstatements that could undermine enforceability.

### 31. DIGITAL SIGNATURES, ELECTRONIC EXECUTION AND ELECTRONIC AUTHENTICATION

31.1. The Parties expressly acknowledge and agree that this Agreement, together with any Schedule, Annexure, Addendum, Amendment, Declaration, Undertaking, Acceptance, Consent, Confirmation, Acknowledgement, Notice, Invoice, Demand, Communication or any other document executed or exchanged pursuant hereto, may be executed, authenticated, acknowledged or accepted by electronic means.

31.2. For the purposes of this Agreement, the expressions "Electronic Signature", "Digital Signature", "Electronic Authentication" and "Electronic Execution" shall include, without limitation, digital signatures issued by a licensed Certifying Authority, Aadhaar based electronic signatures (where applicable), electronic signatures generated through recognised electronic signature service providers, cryptographic digital signatures, clickwrap acceptance, OTP verification, biometric authentication, electronic consent through the Company's website or mobile application, scanned signatures, authenticated email confirmations and such other legally recognised methods of electronic authentication as may be permitted under applicable law.

31.3. The Parties expressly agree that execution or acceptance of this Agreement through any such electronic mode shall constitute a valid, binding and enforceable execution of this Agreement, and shall have the same legal force and effect as execution by handwritten signatures on physical documents, subject to applicable law.

31.4. The Customer irrevocably acknowledges that any electronic signature or electronic authentication generated through the registered mobile number, registered email address, verified customer account, authorised device, Digital Platform or any secure authentication mechanism maintained by or on behalf of the Lessor shall be deemed to have been affixed or authorised by the Customer, unless the Customer establishes that such authentication resulted solely from unauthorised use despite having exercised reasonable care in protecting the relevant credentials.

31.5. The Customer shall remain solely responsible for maintaining the confidentiality of all passwords, authentication credentials, digital certificates, OTPs, registered devices, security tokens and electronic access credentials associated with the Customer's account. The Customer shall immediately notify the Lessor in writing upon becoming aware of any unauthorised access, loss, compromise or misuse of such credentials. Until such notice is received and the Lessor has had a reasonable opportunity to act upon it, the Lessor shall be entitled to rely in good faith upon transactions authenticated through such credentials.



- 31.6. The Customer further agrees that electronic execution may occur at different times, from different locations and by different modes, and the validity, enforceability or admissibility of this Agreement shall not be affected merely because the Parties have not physically signed the same document simultaneously or at the same location.
- 31.7. Electronic records maintained by the Lessor relating to execution of this Agreement, including authentication logs, digital certificates, timestamps, IP addresses, device identifiers, audit trails, metadata, server logs, electronic acknowledgements, verification records and related system generated information, may, subject to compliance with applicable law, be relied upon to establish execution, authentication, consent and acceptance of this Agreement.
- 31.8. No Party shall dispute the validity, enforceability or admissibility of this Agreement solely on the ground that it was executed, authenticated, transmitted, stored or reproduced electronically.
- 31.9. The Parties further agree that electronically executed copies, scanned copies, digitally signed copies and electronically certified copies of this Agreement shall, subject to applicable law, be treated as originals for all contractual, commercial, evidentiary and enforcement purposes.
32. Payment Through Mobile Application and Digital Invoice:
- 32.1. The Customer expressly acknowledges and agrees that all payments made for the Services shall be effected exclusively through the Company's designated mobile application or any other digital payment platform authorized by the Company from time to time.
- 32.2. The payment records maintained by the Company, including the digital payment confirmation, transaction receipt, electronic invoice, tax invoice, bill generated through the mobile application, server records, audit logs, and other electronically generated records, shall constitute conclusive and legally admissible evidence of payment.
- 32.3. The Customer further agrees that the digital bill/invoice generated through the Company's application shall be deemed to be the original invoice for all legal, accounting, taxation, and evidentiary purposes and shall be binding upon the Parties unless disputed in writing within seven (7) days from the date of its generation.

#### SCHEDULE 1: VEHICLE CONDITION GUIDELINES

Your vehicle must follow all laws and regulations for safety, condition and operation. You should get a vehicle mechanical and safety inspection at least once a year. An inspection would include vehicle's most critical safety items including brakes, steering parts, tires and lights.

Complete maintenance requirement list below, Visual overview and legal registration:

- a) RC Copy

- b) Valid insurance
- c) Brake tests:
- d) Parking brake
- e) Service brake, 3mm or more (25% of the life of the brakes or more, typically)
- f) Exhaust system:
- g) Undamaged exhaust system components/muffler.
- h) No visible blue or black smoke
- i) Steering and suspension.
- j) Steering wheel and box
- k) Suspension/front end
- l) Springs
- m) Shocks
- n) Vehicle height
- o) Horn
- p) Sound horn to test for adequate signal
- q) The horn must be securely fastened to the vehicle
- r) Glazing, glass, and windshield wipers
- s) Windshield, no cracks; no chips in the line of sight
- t) Windshield wipers and washer in working order
- u) Windows, no cracks
- v) Tint to legal specifications
- w) Engine and powertrain
- x) Engine, including all subcomponents
- y) Cooling system
- z) Lubrication system
- aa) Electrical and electronic management systems
- bb) Transmission, including clutch, torque converter, and

- cc) Similar components
- dd) All fluids and lubricants
- ee) No check engine light, warning lights, or recalls
- ff) Visibility and lighting devices
- gg) Headlight aim
- hh) Headlights and rear lights working, no bulbs burned out
- ii) Hazard lights, directionals/stop/reverse lights, and license
- jj) Plate light(s)
- kk) Reflectors
- ll) Rearview mirror
- mm) Mirrors (general)
- nn) Tires and wheels
- oo) 4/32" or greater tread depth (50% or higher of tread, Typically)
- pp) Six years old or newer
- qq) No cuts, gouges, bulges, or bubbles in the sidewall
- rr) Seat belts and airbags
- ss) No airbag warning lights or recalls
- tt) No safety restraint system (SRS) or occupant classification
- uu) System
- vv) (OCS) warning lights or recalls
- ww) Body, including all seals and panels
- xx) No hanging body panels
- yy) No damage to the floor pan, cowl panel, or structural
- zz) Pillars